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SAN FRANCISCO CONFERENCE ON JAPANESE PEACE TREATY ●

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INDIA REFUSES TO BE PARTY TO TREATY

Indian Note of August 23

[*Released to the press August 25*]

I am desired to convey to you the following reply on behalf of the Government of India to your Government's invitation to participate in a conference to conclude a treaty of peace with Japan to be convened on September 4, 1951, in San Francisco.

1. The Government of India have the honour to acknowledge with thanks the receipt of the reply of the Government of the United States of America to the representations which they had made on the Japanese Peace Treaty in their communication dated July 30, 1951. They fully appreciate the consideration given to their views by the United States Government and wish to assure them that the present reply is conceived in a spirit of frankness and sincere friendship for Government and people of the United States of America.

2. Throughout the negotiations that have taken place between the two Governments on the subject of the treaty the Government of India have laid emphasis upon two fundamental objectives:

(I) The terms of the Treaty should concede to Japan a position of honour, equality, and contentment among the community of free nations;

(II) They should be so framed as to enable all countries specially interested in the maintenance of a stable peace in the Far East to subscribe to the Treaty sooner or later.

The Government of India have after most careful thought come to the conclusion that the Treaty does not in material respects satisfy either of these two criteria.

3. *Condition (I)*

(a) It is only natural to expect that Japan should desire the restoration in full of her sovereignty over territory of which the inhabitants have a historical affinity with her own people and which she has not acquired by aggression from any other country. The Ryukyu and the Bonin Islands fully satisfy this description. Nevertheless the Treaty proposes that until United States Government seek and obtain trusteeship over these Islands they should continue to be subject to the legislative and administrative control of the United States. It is apparent to the Government of India that such an arrangement cannot but be a source of dissatisfaction to large sections of the Japanese people and must carry the seed of future dispute and possible conflict in the Far East.

(b) The Government of India recognise that as a sovereign nation Japan should have the right to make arrangements for her defence as provided in Article 5 of the Treaty. If in exercise of this right Japan should decide to enter into defensive agreements with a friendly power no one could reasonably object to this. But the right should be exercised by the Government of Japan when Japan has become truly sovereign. A provision in the Treaty which suggests that the present occupation force may stay on in Japan as part of such a defensive agreement is bound to give rise to the impression that the agreement does not represent a decision taken by Japan in the full enjoyment of her freedom as a sovereign nation. The effect of this not only on the people of Japan but upon large sections of people in Asia is bound to be most unfortunate.

4. *Condition (II)*

As already stated the Government of India attach the greatest importance to the Treaty providing that the Island of Formosa should be returned to China. The time and manner of such return might be the subject of separate negotiations but to leave the future of the Island undetermined, in spite of past international agreements, in a document which attempts to regulate the relations of Japan with all Governments that were engaged in the last war against her does not appear to the Government of India to be either just or expedient. *Mutatis mutandis* the same argument applies to the Kurile Islands and to South Sakhalin.

5. For foregoing reasons, the Government of India have decided, with regret, that they cannot be parties to the Treaty. It is their sincere hope that lasting peace will prevail in the Far East and, to that end, they will continue to cooperate with the United States Government and other Governments in such manner as may be open to them, consistently with the principles on which their foreign policy is based. As a first step, it is their intention, as soon as this may be practicable, to put an end to the state of war between them and Japan, and to establish full diplomatic relations with that country.

6. It has already been announced that the Conference convened at San Francisco to consider the draft Peace Treaty with Japan will not be open to negotiations, though attending Governments will be free to state their views on the Treaty. The Government of India feel that the statement of their views on the Treaty contained in this reply should be adequate to clarify their own position on the Conference. It is their intention, if the United States Government have no objection, to communicate this reply to their own Parliament which is now in session on August 27. Once the document has been published, it will be available for the information of the Conference, and the Government of India will be glad if the Government of the United States, which will act as host to the Conference, will have this reply circulated to its members. As, for reasons already stated, the Government of India will be unable to sign the Treaty, they think that it is not necessary for them to send representatives to it.

The Government of India would be glad to know if the United States Government have any objection to their informing our Parliament of this reply on Monday, August 27, 1951.

With assurances of my highest esteem,

M. K. KIRPALANI,
Chargé d'Affaires ad interim.

The Honourable JOHN FOSTER DULLES,
Consultant to the Secretary of State,
U.S. Department of State,
Washington, D. C.

U.S. Reply of August 25

[Released to the press August 25]

The Government of the United States has the honor to acknowledge the note of the Government of India of August 23, 1951, in reply to the explanations given by the Government of the United States to the Government of India under date of July 30, 1951, regarding the Japanese Peace Treaty.[2] The Government of the United States responds in the same spirit of frankness and friendship which, as the Government of India points out, animates its note of August 23.

1. The Government of the United States welcomes the expressed intention of the Government of India to put an end to the state of war between it and Japan and to establish diplomatic relations with that country. The overriding desire of the Government of the United States is peace in Asia. The Government of the United States believes that the peace will be more stable if it is founded on united action, just as victory involved united action and the occupation involved united action. However, the people of the United States will not feel that their efforts and sacrifices for victory in the Pacific have been in vain if they have made it possible for the Government of India to make peace with a Japan which is no longer a militaristic and aggressive threat.

2. The Government of the United States regrets that the Government of India feels that the pending treaty of peace has imperfections such that the Government of India prefers to make a separate peace. There can never be united action for peace unless the nations are willing to accept what, to each, may seem imperfections.

3. In its specification of imperfections the Government of India suggests that the treaty of peace will not provide Japan with a "position of honor, equality, and contentment among the community of free nations." This suggestion greatly surprises the Government of the United States. From the beginning the announced goal of the United States has been to restore Japan to just such a position. It is the belief of the Government of the United States, shared by the Government and people of Japan and of many other states, that the pending treaty to an unprecedented degree achieves that goal.

For example, the Prime Minister of Japan in a letter of July 13, 1951, to John Foster Dulles written on the occasion of calling the San Francisco Conference said:

> I am grateful that we have been consulted and given a full opportunity to submit our views and desires, and moreover that these have been in a large measure incorporated in the draft treaty.
>
> The treaty, as it stands, reflects abundantly American fairness, magnanimity and idealism.

The Government of the United States doubts that the Government of India has fully understood and taken into account the views of the Government and people of Japan.

4. The Government of India further suggests that the treaty is not so framed as to enable all countries especially interested in the maintenance of stable peace in the Far East, to subscribe to the treaty sooner or later.

The treaty makes provision for multilateral signature now and obligates Japan to conclude similar treaties with all countries not now signatory who are parties to the U.N. Declaration of January 1, 1942. The Governments of the United Kingdom and of the United States, sponsors of the present text, and the many other Allied Powers which have cooperated to produce that text, have gone to great pains to assure that the treaty will be such as to enable all of the Allies to subscribe to it.

5. The Government of India suggests that the treaty should restore in full Japan's sovereignty "over territory of which the inhabitants have an historical affinity with her (Japan's) own people" and which she has not acquired by aggression from any other country.

This principle would involve a major departure from the Potsdam surrender terms, which specified categorically that Japanese sovereignty should be limited to the four home islands and to such minor islands as the parties to the surrender proclamation might determine. The Government of India has never questioned these terms during the 5½ years during which India has served as a member of the Far Eastern Commission, which was established to insure the fulfillment of those terms. The principle now put forward by the Government of India would require the retention by Japan of full sovereignty over the Kurile Islands, and over the Ryukyu Islands. Yet, the Government of India criticizes the treaty provisions with reference to the Kurile Islands because it does not explicitly transfer full sovereignty to the Soviet Union and criticizes the provision with reference to the Ryukyus because, although it leaves sovereignty in Japan, it permits U.N. trusteeship with the United States as administering authority.

The Government of the United States finds it difficult to understand how the Government of India can be confident that future arrangements regarding the Ryukyu and Bonin Islands, the terms of which are not yet formulated, will hereafter "be a source of dissatisfaction to large sections of the Japanese people." Nor does the Government of the United States understand why the Government of India applies such different tests as between the Kuriles and the Ryukyus.

6. The Government of India objects because the treaty gives Japan the right to prevent its becoming an indefensible nation between the date of the coming into force of the treaty of peace and the coming into force of some voluntary collective se-

[2] Not here printed.

curity arrangement. The Government of India suggests that the only way to prove that such a security arrangement is in fact voluntary is to subject Japan to the grave risk incident to a period of total defenselessness in close proximity to proved aggressors. There is no reason to believe that this is desired by the people of Japan or that it would promote the welfare of Japan for the treaty of peace to impose that grave hazard upon Japan.

The Government of the United States has gone to great lengths to ascertain that any security agreement which Japan seeks shall, in fact, be responsive to the will of the Japanese people. It would be quite impracticable and totally unwelcome for the United States to help to defend Japan if that were not wanted by the Japanese people. The statements of the Japanese Government and of the political leaders of the Diet, and manifold expressions of public opinion, all demonstrate that the Japanese do not want Japan to become a defenseless nation upon the coming into force of the treaty of peace. No less than 32 of the Allied Powers, all members of the United Nations, have freely made or are making collective security arrangements to which the United States is a party. It would, indeed, be surprising if the sentiment which has animated so many free peoples did not manifest itself also in Japan.

7. The Government of India states that the future of Formosa should not be left "undetermined." It suggests that the treaty should provide for the return of Formosa to China but that "the time and manner of such return might be the subject of separate negotiations." It would seem to the United States that a future disposition is "undetermined" if it depends upon future negotiations as to time and manner.

The Government of India must be fully aware that there cannot at the present time be any final agreement among the Allied Powers with respect to the future of Formosa. To insist that a Japanese peace treaty be deferred until there is such agreement is, in fact, to postpone indefinitely the restoration of Japan to "honor, equality and contentment among the community of free nations," which the Government of India agrees is an urgent requirement. Furthermore, the Government of the United States observes that the Government of India apparently does not intend itself to defer ending its state of war with Japan until the future of Formosa has been definitely dealt with.

8. The Government of the United States does not claim that the prospective treaty of peace is in every respect perfect. It involves adjustments such as are the inevitable accompaniment of any concerted human effort. The essential thing is that the treaty is a peace treaty and is drawn in terms which do not contain within themselves the seeds of another war. Delay would cost a price which makes petty all the sacrifices incident to present action. It would perpetuate the surrender terms which subject the Japanese Government to the military rule of Allied Powers. If that subjection is continued after the occupation has served its legitimate and valid purposes the result is indistinguishable from colonialism and imperialism in vicious form. The United States does not want to be a party to colonialism or imperialism. That is why it strives so earnestly to achieve the best possible peace as promptly as possible. That is why it contributes so liberally to the rehabilitation of our former enemies as well as of our friends.

The Government of the United States regrets that the Government of India is not disposed to join this united effort for peace. However, the Government of the United States welcomes the assurances of the Government of India that, insofar as consistent with the principles on which its foreign policies are based, it will continue to cooperate with the U.S. Government and other governments to the end that lasting peace will prevail in the Far East. The Government of the United States hopes that these principles to which the Government of India alludes will permit of cooperation which is practical and fruitful for peace.

STATEMENT BY JOHN M. ALLISON [1]

At some point in every battle report there comes a time to talk of *peace*, for peace is the ultimate objective of *all* battles and *all* wars. We now talk of peace with Japan. The United States has issued invitations to 53 nations to come on September 4 to San Francisco to conclude and sign a peace treaty with Japan. In cooperation with the United Kingdom a draft of a treaty has been forwarded to all of those nations and it will be before the delegates to that conference. It is not the product of any single person or single country. All the nations in the war against Japan have had an opportunity to make suggestions and many of them have done so. Everyone has had his say and now words must be translated into action.

After 6 years of occupation, Japan must be brought back as an equal, sovereign member of the family of nations. It is important to all of us that the 83 million Japanese with their vigor, their willingness to work, and their knowledge of modern industrial techniques be given an opportunity to contribute to the economic recovery and the political stability of Asia. It is important that Japan become a peaceful member of the free world, but this must be on a voluntary basis. The free world does not operate by compulsion. It does not want slaves. Only the free choice of the Japanese people to throw in their lot with the free world will be of importance. We do not want to, in fact we cannot, force them to do so.

[1] Made over the NBC-TV network program, "Battle Report" on Aug. 24 and released to the press on the same date. Mr. Allison is Deputy to John Foster Dulles, Consultant to the Secretary.